

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/07/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01545461 Patierno Family LLC vs. Parker	The Court has read and considered the Defendant's Motion to Set Aside Default/Default Judgment (ROA 82) and Exhibit List (ROA 79). The Court takes Judicial Notice of the 5/8/26 Minute Order (ROA 32), 5/12/2026 Minute Order (ROA 34), 5/28/26 Minute Order (ROA 45), 6/4/26 Minute Order (ROA 54), 6/18/26 Minute Order (ROA 64), 6/29/26 Minute Order (ROA 70), 7/1/26 Minute Order (ROA 76), and the Request for Clerk's Default (ROA 13). As reflected in Ms. Parker's Exhibit List (page 59 of 150), the Court recognizes that Ms. Parker has documented serious mental illness. The Court has also considered her assertions, made in multiple ex parte applications, regarding an infestation of worms and contagious parasites. However, when Huntington Beach Code Enforcement inspected the property in or about May 2026, it did not observe the serious conditions described in those filings. The record reflects that Ms. Parker was personally served with the Summons and Complaint on February 9, 2026, at 7:18 p.m. by registered process server

		Justin Martin (Orange County Registration No. 2655). Ms. Parker did not file a responsive pleading within the time prescribed by law. Following issuance of the Writ of Possession, Ms. Parker filed an ex parte application seeking to stay enforcement of the writ and to set aside the default. The Court granted a temporary stay and set the matter for hearing on May 12, 2026. Ms. Parker did not appear at that hearing, and the stay was lifted. Thereafter, Ms. Parker filed multiple additional ex parte applications, each of which was denied. The Court has also considered Ms. Parker's contention that she was prevented from accessing the Court or filing documents. The record, however, demonstrates that she successfully filed numerous ex parte applications, including filings made through the Court's electronic filing system. In addition, for the May 12, 2026 hearing, the Court expressly permitted Ms. Parker to appear by video or telephone in order to accommodate the limitations she had identified. These circumstances do not support the assertion that she was denied meaningful access to the Court. Having considered the evidence and the parties' submissions, the Court finds that Ms. Parker has not met her burden of establishing relief under California Code of Civil Procedure section 473(b). Accordingly, the Motion to Set Aside Default and Vacate the Writ of Possession is DENIED. The Court Clerk is to provide notice of the Court's ruling.
2	30-2026-01583760 Raintree Tustin, LLC vs. Johnson	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 7). Ms. Cardoso (Plaintiff's Counsel) was served with mail notice on 8/3/26 of the Motion per the proof of service attached to ROA 7. A review of the Court docket shows that no Proof of Service of Summons has been filed with this Court. The Defendant's Motion to Quash is GRANTED. Plaintiff is ordered to serve the Defendant and file proof of service with this Court. The Court Clerk is to provide notice of the Court's ruling.
3	30-2026-01570249 Iorio vs. Iorio	The Court has read and considered the Defendant's Motion to Set Aside (ROA 16). The attached proof of service states that on 7/15/2026 Plaintiff's counsel was served by mail notice of this motion. The Court finds under California Code of Civil Procedure 473(b) that the Defendant has met its burden in establishing mistake and excusable neglect of the proceedings in failing to timely file an Answer. The Court GRANTS the Defendant's Motion to Set Aside the Default that was entered on 7/13/2026.